

24CHCV02266 24CHCV02266

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-07

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Case Number: 24CHCV02266 Hearing Date: August 7, 2026 Dept: F47

Dept. F47

Date: 8/7/26

Case #24CHCV02266

MOTION TO

COMPEL DEPOSITION

Motion filed on 4/1/26.

MOVING PARTY: Defendant Magic Mountain, LLC

RESPONDING PARTY: Non-Party Jawaun Graham

NOTICE: ok

RELIEF REQUESTED: An order compelling third-party witness, Jawaun Graham, to attend his deposition and provide testimony, within 10 days of the hearing on the motion.

Additionally, Defendant requests sanctions be imposed on Graham in the amount of \$3,338.78, to be paid within 10 days.

RULING: The motion is placed off calendar.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Tiffani Rodriguez's

(Plaintiff) claim that she sustained personal injuries in the children's slide area at Defendant Magic Mountain, LLC's (Defendant) Six Flags Hurricane Harbor water park. On 6/21/24, Plaintiff filed this action against Defendant for premises liability. On 8/14/24, Defendant answered the complaint.

In response to written discovery, Plaintiff identified Jawaun Graham (Graham) as a witness and provided his address and telephone number. (Cherazaie Decl., Ex.C). On 2/11/26, Defendant served an amended notice of deposition for Graham's deposition for 3/24/26. (Id., Ex.D). On 2/23/26, Defendant personally served a Deposition Subpoena on Graham. (Id., Ex.E-F). Graham failed to appear for his deposition. (Id., Ex.G).

On 4/1/26, Defendant filed and served the instant motion seeking an order compelling third-party witness, Jawaun Graham, to attend his deposition and provide testimony, within 10 days of the hearing on the motion. Additionally, Defendant requests sanctions be imposed on Graham in the amount of \$3,338.78, to be paid within 10 days.

ANALYSIS

CRC 3.1346 provides:

"A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record."

Here, the proof of service/declaration of service attached to the motion indicates that the motion was served by email. (See Proof of Service attached to motion, pdf 52). On the Service List attached to the Proof of Service, there is a notation that Graham was purportedly "served by mail and personal service" with no email address listed for Graham. (Id., pdf 53). However, there is no declaration of service

attesting that Graham was served by mail or personal service with the motion.

Additionally, Plaintiff's discovery response identifying Graham as a witness lists his address as 616 Aerick St., Unit 3, Inglewood, CA 90301. (See Cherazaie Decl., Ex.B, C – Special Interrogatory 5 and response thereto). The Deposition Subpoena also lists Graham's address as the Aerick St. address. (Id., Ex.E). However, the proof of service for the Deposition Subpoena indicates that it was personally delivered to Graham at 5418 ½ Thornburn St., Los Angeles, CA 90045. (Id., Ex.F). While it is possible that Graham was personally served with the Deposition Subpoena at a location other than his home, no explanation for the different address is provided. Further, the service list attached to the defective proof of service for the motion, indicates that the motion was purportedly mailed and personally delivered to Graham at the Thornburn St. address. Again, no explanation is provided as to why the motion would be mailed to the Thornburn St. address.

If Defendant has evidence that Graham's current address is the Thornburn St. address, evidence of such should be provided in a subsequent motion to explain why the Deposition Subpoena was served at that address and/or why a subsequent motion would be properly served on Graham at that address.

There is no response to the motion from Graham to cure the defect in notice.

CONCLUSION

Due to the defect in service of the motion, the matter is placed off calendar.